

other residuary legatees, if the undistributed part afterwards become depreciated or lost (*b*).

46. Appropriation of residue.—Where the residue consists of a great variety of securities, the question arises whether the trustees in the absence of any special power can *virtute officii*, where infants are concerned, divide the residue by appropriating some securities to one residuary legatee and other securities to another, but so that the distribution is a fair one according to the market price of the day of the funds so appropriated. The *Court* can make such an apportionment, for in a suit guardians *ad litem* of the infants are appointed and are heard on their behalf to protect their interests; but out of Court where the voice of the infants cannot be heard, it would be unsafe for trustees to make such an apportionment on their own responsibility. However, where trustees are directed to invest the infants' share on any particular securities, they might accept securities of *the nature prescribed at the market price, as the [*593] transaction when resolved would be the payment of so much money, and the investment of it by the trustees in the requisite securities. Where there are no special powers, the trustees should turn the whole of the irregular species of property into money and divide the proceeds.

45. Release of equity of redemption.—Trustees of an *equity of redemption* of lands mortgaged for more than their value, may, it is conceived, release the equity of redemption to the mortgagee, rather than be made defendants to a foreclosure suit, the cost of which, so far as incurred by themselves, would fall upon the trust estate.

46. Whether trustees mortgagees can release part of the land in mortgage.—Where trustees are *mortgagees* they are often requested to release part of the land from the security, in order to enable the mortgagor to deal with it for his own convenience. Where the value of the land is not excessive as compared with the debt, it would, of course, be a gross breach of trust to deteriorate the security. But suppose the value of the part left in the mortgage to be (say) double the amount of the debt, may the trustees release the residue?

(*b*) *Peterson v. Peterson*, 3 L. R. Eq. 111.